

April 6, 2026

Author's email: ctapp@porterscott.com
toconnell@porterscott.com

VIA CERTIFIED MAIL

Franciscus Dylan Rosario
7624 Melody Drive
Rohnert Park, CA 94928
soltrinox@gmail.com

RE: ROSARIO v ABDELHALIM; CSAA INSURANCE EXCHANGE; et al.
San Francisco County Superior Court, Case No. CGC-25-631801
Meet & Confer re: Demurrer and Motions to Strike

Mr. Rosario:

Please accept this correspondence as an attempt to meet and confer regarding the deficiencies in your First Amended Complaint (“FAC”) against the Defendants CSAA INSURANCE EXCHANGE, CARBONE, SMITH & KOYAMA, AND MICHAEL R. CHAMBERS (“Defendants”). My office now represents all three of these Defendants, in this action.

I understand that you do not have an attorney representing you in this case. If that changes, at any point, please make sure that I am immediately made aware, and I will then direct all correspondence through your attorney.

I also must extend to you an offer to engage in a meet and confer phone call on the topics addressed in this letter and my office’s anticipated demurrer and motions to strike (per Code Civ. Proc. §§ 436; 425.16. The deficiencies on the face of your FAC, filed on February 25, 2026, are subject to a demurrer and motions to strike pursuant to California Code of Civil Procedure §§ 430.10; and 436.

Sole Cause of Action: “Independent Action in Equity to Set Aside Judgment for Extrinsic Fraud”

There are several legal and factual bases for Defendants to demurrer/move to strike your FAC. Those several bases will be listed herein, with a short description of the relevance of each objection.

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1) Protected Litigation Conduct:

All your factual allegations against my clients (CSAA, Carbone, and Chambers) squarely target protected litigation conduct under Civil Code § 47(b) and Code Civ. Proc. § 425.16 and your claims against them are therefore barred as a matter of law. As you know, your factual allegations target the underlying defense of your personal injury lawsuit and jury trial. Judgment in that jury trial was entered in April 2025, after the jury rendered a defense verdict. All your FAC's allegations focus on the litigation activity, conduct, and communications on the part of CSAA and its retained insurance defense counsels. This is in violation of black letter California law, shielding defendants from such legally unsupportable and duplicative litigation.

Furthermore, your FAC's unlawful targeting of such privileged conduct justifies my clients filing a Special Motion to Strike under Code Civ. Proc. § 425.16. As you may be aware, this so-called Anti-SLAPP motion, and legal authorization for that motion, requires the recovery of attorneys' fees and costs in the event that Defendants prevail on their Anti-SLAPP motion. I assure you, my office will file an Anti-SLAPP motion, should you not withdraw these pleadings, and my clients will vigorously seek recovery of their attorneys' fees and costs in defending against this lawsuit.

2) The Statute of Limitations Precludes Your Claim.

The proper means by which you should have attempted to set aside judgment would have been a Motion to Set Aside Judgment, in the prior action, under Code Civ. Proc. § 473(b), which provides in relevant part:

The court may, upon any terms as may be just, relieve a party or the party's legal representative from a judgment, dismissal, order, or other proceeding taken against the party through the party's mistake, inadvertence, surprise, or excusable neglect. Application for this relief shall be accompanied by a copy of the answer or other pleading proposed to be filed therein, otherwise the application shall not be granted, and shall be made within a reasonable time, in no case exceeding six months, after the judgment, dismissal, order, or proceeding was taken. (Code of Civil Procedure § 473(b).)

Your present effort to file a new action to sidestep this timeliness requirement is unjustified and unsupportable in the law. This timeliness bar, alone, justified demurrer.

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3) No Standing

Mr. Rosario, you lack standing to sue Defendants. As you are well aware, Defendants were the insurance carrier and defense counsels for a third-party insured, Mr. Abdelhalim, whom you sued, and lost. That makes you a third party to CSAA and its counsels. “As a general rule, a third party may directly sue an insurer only when there has been an assignment of rights by, or a final judgment against, the insured.” (*Shaolian v. Safeco Ins. Co.* (1999) 71 Cal.App.4th 268) (emphasis added). Here, you obtained neither an assignment from, nor judgment against, the Insured, Mr. Abdelhalim. Therefore, you do not have standing to sue Defendants and this effort to do so is improper and subject to demurrer.

4) This Court has No Jurisdiction (Code of Civ. Proc., § 430.10(a).)

Code Civ. Proc. § 904.1(a) provides: that “[a]n appeal, other than in a limited civil case, is to the court of appeal,” including from “a judgment.” This Court does not have jurisdiction to hear an appeal of this Court’s own prior entry of judgment is clearly. The entire FAC in reality is an unlawful and improper “appeal” at the Superior Court level, masquerading as a new lawsuit. This justifies demurrer.

5) Another Action Pending (Code of Civ. Proc., § 430.10(b).)

As above, your pending appeal justifies demurrer under this subdivision as well.

6) There is a defect or misjoinder of parties. (Code of Civ. Proc., § 430.10(d).)

As above (see section on “No Standing”), here also, you have improperly joined as Defendants parties against whom you have no standing. This also justifies demurrer.

7) The pleading fails to allege facts sufficient to constitute any cause of action against Defendants. (Code of Civ. Proc., § 430.10(e).)

For a host of reasons, you have not alleged sufficient facts to constitute a cause of action against Defendants. For one, you have not pled fraud with the required level of “particularity.” Each element [of fraud] must be alleged with particularity.” (*Beckwith v. Dahl* (2012) 205 Cal.App.4th 1039, 1059–1060). Your FAC falls short of this requirement—as against these Defendants. Nowhere does your FAC purport to plead the actual “misrepresentations” made by Defendants to the Court, or anyone else. In fact, all the key allegations of “misleading representations” in your pleading target PSA, not my clients. Second, your claim of “extrinsic fraud,” is a red herring. All the “material evidence” (911 calls, bodycam footage, CAD logs) your FAC complains about is irrelevant. Defendant’s motion to exclude that evidence was denied, and you were free to present it. And indeed, you did. That is not evidence of fraud, that is simply a failure, on your part, to persuade the jury.

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8) The FAC “is uncertain” (Code of Civ. Proc., § 430.10(f).)

Your pleading is unintelligible and ambiguous insofar as it cannot possibly constitute a cause of action against my clients. Your true remedy is an appeal, which you have already filed. This new lawsuit is completely legally unsupportable and frivolous.

Conclusion:

Based upon the above, your First Amended Complaint (“FAC”) fails to state sufficient facts to support the cause of action contained therein. I would like to offer to conduct a telephone conversation with you to discuss your FAC. On that call, I will discuss with you in greater detail the points contained in this letter, which will also be argued in my clients’ subsequent Demurrer, Motion to Strike (Code Civ. Proc. § 436), and Special Motion to Strike (Code Civ. Proc. § 425.16).

I implore you to withdraw your pleadings and dismiss this meritless lawsuit. I understand your loss at trial was difficult for you; however, if you continue in this misguided effort, my clients will seek recovery of their attorneys’ fees and costs in Striking your pleadings.

I look forward to having a telephone conference to discuss the contents of this meet and confer correspondence. Please let me know as soon as possible your availability to have a conference regarding the pleading issues identified above, prior to our deadline to file a demurrer and motions to strike, which is **Monday, April 22, 2026**.

Very truly yours,

PORTER SCOTT
A PROFESSIONAL CORPORATION

Tyler J. O’Connell

By Chad S. Tapp
Tyler J. O’Connell

CST/TOC/mps